

Terms of Service

Last Updated as of []

These terms of service, together with any documents and additional terms that they expressly incorporate by reference, and any other terms and conditions or other agreement that BlocEquity ("BE," "we," "us," and "our") posts publicly or makes available to you or the company or other legal entity you represent ("you" or "your") (collectively, these "Terms"), are entered into between BE and you regarding your use of and access to BE's website and BE's mobile applications, and all associated sites linked thereto by BE or its affiliates (collectively with any materials and services available therein, and successor website(s) or application(s) thereto, the "Site") and the Services (as defined in Section 2.1).

To use the Services, you should carefully read and abide by these Terms. By accessing or using the Site or the Services, you accept and agree to be bound by and comply with these Terms, including, without limitation, the mandatory arbitration provision in Section 14. You also acknowledge that you have read and understood our [Privacy Policy](#) as further described in Section 15.1.

If you do not agree to these Terms, you must not access or use the Site or the Services.

Please carefully review the disclosures and disclaimers set forth in Section 12 and elsewhere in these Terms in their entirety before accessing or using any software, services, or other offerings developed, owned, or otherwise made available by BE.

These Terms set forth important details about the legal obligations associated with your use of the Services.

Please read these Terms carefully to ensure that you understand each provision. These Terms contain a mandatory individual arbitration provision and class action waiver in section 14 that require, unless you opt out pursuant to the instructions in section 14, the exclusive use of final and binding arbitration on an individual basis to resolve disputes between you and us, including without limitation any claims that arose or were asserted before you agreed to these Terms. To the fullest extent permitted by law, you expressly waive your right to seek relief in a court of law, as well as your right to participate as a plaintiff or class member in any class, collective, private attorney general or representative action or proceeding.

1. Modifications to These Terms

We reserve the right, at our sole discretion, to modify these Terms periodically. If we make changes, we will notify you of such changes, for example, by providing notice via the Services or updating the "Last Updated" date at the top of these Terms. Unless we specify otherwise in our notice, all such modifications shall be effective immediately, and your continued use of the Site and the Services after we issue that notice will signify your acceptance of the changes. If you do not agree to the amended Terms, you must cease using the Site and the Services.

2. Use of Services

2.1 The Services. The Site provides information regarding the Services and, subject to eligibility requirements, the successful completion of BE's onboarding process, and the ability to access certain services operated by BE, as well as certain Tools (collectively, "**Services**").

2.2 Conditions. As a condition for accessing or using the Services or the Site, you represent and warrant to BE the following:

2.2.1 If you are entering into these Terms as an individual, then you are of legal age in the jurisdiction in which you reside, and you have the legal capacity to enter into these Terms and be bound by them. If you are entering into these Terms as an entity, then you must have the legal authority to accept these Terms on that entity's behalf. In this case, "you" (except as used in this paragraph) will mean that entity.

2.2.2 You are not a resident, national, or agent of sanctioned jurisdictions according to any trade embargoes, UN Security Council Resolutions ("UNSCR"), or HM Treasury's financial sanctions regime (collectively, "Restricted Territories").

2.2.3 You are not a member of any sanctions list or equivalent maintained by the United States government, the United Kingdom government, the European Union, the United Nations, or any similar list maintained by any other relevant sanctions authority (collectively, "**Sanctions List Persons**"). Also, you do not intend to transact with any Restricted Person or Sanctions List Person.

2.2.4 You do not, and will not, use VPN software or any other privacy or anonymization tools or techniques to circumvent, or attempt to circumvent, any restrictions that apply to the Services.

2.2.5 Your access to the Services is not:

(a) prohibited by, and does not otherwise violate or assist you in violating, any domestic or foreign law, rule, statute, regulation, by-law, order, protocol, code, decree, or other directive, requirement, or guideline, whether published or in force, that applies to or is otherwise intended to govern or regulate any person, property, transaction, activity, event, or other matter. This includes any rule, order, judgment, directive, or other requirement or guideline issued by any domestic or foreign federal, provincial or state, municipal, local, or other governmental, regulatory, judicial, or administrative authority having jurisdiction over BE, you, the Site, or the Services, or as otherwise duly enacted and enforceable by law, the common law, or equity (collectively, "**Applicable Laws**"); or

(b) contributing to or facilitating any illegal activity.

2.3 As a condition for accessing or using the Services or the Site, you acknowledge, understand, and agree to the following:

2.3.1 From time to time, the Site and the Services may be inaccessible or inoperable for any reason, including, without limitation:

- (a) Equipment malfunctions;
- (b) Periodic maintenance procedures or repairs that BE or any of its suppliers or contractors may undertake from time to time;
- (c) Causes beyond BE's control or that BE could not reasonably foresee;
- (d) Disruptions and temporary or permanent unavailability of underlying blockchain infrastructure;
or
- (e) Unavailability of third-party service providers or external partners for any reason.

2.3.2 We reserve the right to disable or modify access to the Site and the Services at any time in the event of any breach of these Terms. This includes, without limitation, if we reasonably believe any of your representations and warranties may be untrue or inaccurate. Moreover, we will not be liable to you for any losses or damages you may suffer as a result of or in connection with the Site or the Services being inaccessible to you at any time or for any reason.

2.3.3 The Site and the Services may evolve. This means that BE may, in its sole discretion, apply changes to, replace, or discontinue (temporarily or permanently) the Services at any time.

2.3.4 The general pricing information provided on the Site is informational and does not represent an offer, a solicitation of an offer, or any advice regarding, or recommendation to enter into, a transaction with BE.

2.3.5 BE does not act as an agent for you or any other user of the Site or the Services;

2.3.6 You are solely responsible for your use of the Services, including all your transfers of Digital Assets and the custody and control of your Digital Assets.

2.3.7 To the fullest extent not prohibited by Applicable Law, we owe no fiduciary duties or liabilities to you or any other party. And to the extent any such duties or liabilities may exist at law or in equity, you hereby irrevocably disclaim, waive, and eliminate those duties and liabilities.

2.3.8 You are solely responsible for reporting and paying any taxes applicable to your use of the Services.

2.3.9 We have no control over, or liability for, the delivery, quality, safety, legality, or any other aspect of any Digital Assets that you may transfer to or from a third party. We are not responsible for ensuring that an entity with whom you transact completes the transaction or is authorized to do so. If you experience a problem with any transactions in Digital Assets using the Services, then you bear the entire risk.

2.4 As a condition for accessing or using the Services or the Site, you covenant to do the following:

2.4.1 In connection with using the Services, you will only transfer legally-obtained Digital Assets that belong to you.

2.4.2 You will comply with all Applicable Laws when using the Services. You will not use the Site or the Services if the laws of your country or any other Applicable Law prohibit you from doing so.

2.4.3 Any Digital Assets you use in connection with the Services are either owned by you or you are validly authorized to carry out actions using such Digital Assets.

2.4.4 In addition to complying with all restrictions, prohibitions, and other provisions of these Terms, you will, at all times:

(a) Ensure that all information you provide on the Site and during your use of the Services is current, complete, and accurate.

(b) Maintain the security and confidentiality of your private keys associated with your public Ether address, passwords, API keys, private keys associated with your Services account, and other related credentials.

3. Fees and Price Estimates

In connection with your use of the Services, you are required to pay all fees necessary for interacting with the Ethereum or any other applicable blockchain, including transaction costs, as well as any other fees reflected on the Site at the time of your use of the Services.

Where relevant, although we attempt to provide accurate fee information, this information represents our estimates of fees, which may differ from the actual fees paid for using the Services and interacting with the Ethereum or any other applicable blockchain.

4. No Professional Advice or Fiduciary Duties

Unless otherwise stated, all information provided in connection with your access to and use of the Site and the Services is for informational purposes only and should not be construed as professional advice. You should neither take nor refrain from taking any action based on any information contained on the Site or any other information we make available at any time, including, without limitation, blog posts, articles, links to third - party content, Discord content, news feeds, tutorials, tweets, and videos.

Before making any financial, legal, or other decisions involving the Services, you should seek independent professional advice from an individual who is licensed and qualified in the relevant area.

The Terms are not intended to, and do not, create or impose any fiduciary duties on us. You further agree that the only duties and obligations we owe you are those expressly set out in these Terms.

5. Prohibited Activity

You may not use the Services to engage in the categories of activity set forth below ("**Prohibited Uses**"). The specific activities set forth below are representative, but not exhaustive, of Prohibited Uses. If you are uncertain whether your use of the Services involves a Prohibited Use or have other questions about how these requirements apply to you, please contact us at [\[email address\]](#).

By using the Site or Services, you confirm that you will not use the Site or Services to do any of the following:

5.1 Violate any Applicable Laws, including, without limitation, any relevant and applicable anti-money laundering and anti-terrorist financing laws and sanctions programs, such as, without limitation, the US Department of Treasury's Office of Foreign Asset Controls.

5.2 Engage in transactions involving items that infringe or violate any copyright, trademark, right of publicity or privacy, or any other proprietary right under Applicable Law. This includes, but is not limited to, sales, distribution, or access to counterfeit music, movies, software, or other licensed materials without the appropriate authorization from the rights holder; use of BE's intellectual property, name, or logo, including use of BE's trade or service marks, without express consent from BE or in a manner that otherwise harms BE; any action that implies an untrue endorsement by or affiliation with BE.

5.3 Use the Services in any manner that could interfere with, disrupt, negatively affect, or inhibit other users from fully enjoying the Services, or that could damage, disable, overburden, or impair the functioning of the Site or the Services in any way.

5.4 Engage in activity that violates any applicable law, rule, or regulation concerning the integrity of trading markets, including (but not limited to) the manipulative tactics commonly known as spoofing and wash trading.

5.5 Circumvent any content-filtering techniques, security measures, or access controls that BE employs on the Site, including, without limitation, through the use of a VPN.

5.6 Use any robot, spider, crawler, scraper, or other automated means or interface not provided by us to access the Services or to extract data, or introduce any malware, virus, Trojan horse, worm, logic bomb, drop-dead device, backdoor, shutdown mechanism, or other harmful material into the Site or the Services.

5.7 Provide false, inaccurate, or misleading information while using the Site or the Services, or engage in activities that defraud BE, other users of the Services, or any other person.

5.8 Use or access the Site or Services to transmit or exchange Digital Assets that are the direct or indirect proceeds of any criminal or fraudulent activity, including, without limitation, terrorism or tax evasion.

5.9 Use the Site in any way that, in our sole discretion, is libelous, defamatory, profane, obscene, pornographic, sexually explicit, indecent, lewd, vulgar, suggestive, harassing, stalking, hateful, threatening, offensive, discriminatory, bigoted, abusive, inflammatory, fraudulent, deceptive, or otherwise objectionable, or likely or intended to incite, threaten, facilitate, promote, or encourage hate, racial intolerance, or violent acts against others.

5.10 Use the Site or the Services from a jurisdiction that we have, in our sole discretion, determined is a jurisdiction where the use of the Site or the Services is prohibited.

5.11 Harass, abuse, or harm another person or entity, including BE's employees and service providers; impersonate another user of the Services or otherwise misrepresent yourself.

5.12 Engage in activities that violate any applicable law, rule, or regulation of Mauritius or another relevant jurisdiction, including (but not limited to) the restrictions and regulatory requirements imposed by Mauritius law.

5.13 Encourage, induce, or assist any third - party, or attempt yourself, to engage in any of the activities prohibited under this Section 5 or any other provision of these Terms.

6. Content

You hereby grant to us a royalty-free, fully paid-up, sublicensable, transferable, perpetual, irrevocable, non-exclusive, worldwide license to use, copy, modify, create derivative works of, display, perform, publish, and distribute, in any form, medium, or manner, any content that becomes available to other users due to your use of the Site or the Services (collectively, "**Your Content**"). This includes, without limitation, using Your Content for promoting BE, its affiliates, the Services, or the Site.

You represent and warrant that:

(a) you own Your Content or have the right to grant the rights and licenses stipulated in these Terms; and

(b) Your Content and our use of Your Content, as licensed herein, does not and will not violate, misappropriate, or infringe upon any third-party's rights.

7. Proprietary Rights

7.1 Any BE names, logos, and other marks used on the Site or as a part of the Services are trademarks owned by BE, its affiliates, or its applicable licensors. You may not copy, imitate, or use them without the prior written consent of BE or the applicable licensors, and these Terms do

not grant you any rights in those trademarks. You may not remove, obscure, or alter any legal notices displayed in or along with the Services.

8. Third-Party Services

The Services may allow you to access or view links to other World Wide Web-accessible sites, applications, or resources. They may also enable you to access, download, or otherwise interact with content, services, applications, and/or resources provided by third-parties (e.g., eligible crypto wallet providers, blockchain networks) that are not owned or controlled by BE (collectively referred to as “**Third-Party Services**”). Certain functionality of the Service may require you to register for or otherwise use Third-Party Services.

You acknowledge and agree that BE is not responsible for the availability of such Third-Party Services. Additionally, BE does not endorse and is not responsible or liable for any content, advertising, products, or other materials on or available from such Third-Party Services.

You further acknowledge and agree that BE shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the use of or reliance on any Third-Party Services. This includes, without limitation, your use of or reliance on any content, goods, or services available on or through any Third-Party Services.

Your access to and/or use of any third-party service, including but not limited to any interaction or transaction you have with, on, or through any third-party service, is subject to the applicable third-party service’s terms and conditions and/or any other terms made available on or agreed to by you in connection with such third-party service. Any transaction and/or interaction you have with, on, or through a third-party service is solely between you and the applicable third party.

If you access or use a third-party service, you do so at your own risk, and you understand that these terms do not apply to your use of such third-party service. You expressly relieve us from any and all liability arising from your use of or reliance on any third-party service.

9. Modification, Suspension, and Termination

We may, at our sole discretion, from time to time and with or without prior notice to you, modify, suspend, or disable (temporarily or permanently) the Services, in whole or in part, for any reason whatsoever.

Upon termination of your access, your right to use the Services will immediately cease. We will not be liable for any losses suffered by you resulting from any modification to any Services or from any modification, suspension, or termination, for any reason, of your access to all or any portion of the Site or the Services.

The following sections of these Terms will survive any termination of your access to the Site or the Services, regardless of the reasons for its expiration or termination, in addition to any other provision which by law or by its nature should survive: Sections 7 through 15.

10. Assumption of Risks

10.1 By utilizing the Services or interacting with the Site in any way, you represent and warrant that you understand the inherent risks associated with cryptographic systems and blockchain-based networks; Digital Assets, including the usage and intricacies of native Digital Assets, such as Ether (ETH); Ethereum blockchain-based tokens, and systems that interact with blockchain-based networks. BE does not own or control any of the underlying software through which blockchain networks are formed.

In general, the software underlying blockchain networks, including the Ethereum blockchain, is open-source, allowing anyone to use, copy, modify, and distribute it. By using the Services, you acknowledge and agree: (a) that BE is not responsible for the operation of the software and networks underlying the Services; (b) that there is no guarantee of the functionality, security, or availability of that software and networks; and (c) that the underlying networks are subject to sudden changes in operating rules, such as those commonly referred to as "forks," which may materially affect the Services.

Blockchain networks use public/private key cryptography. You alone are responsible for securing your private key(s). We do not have access to your private key(s). Losing control of your private key(s) will permanently and irreversibly deny you access to Digital Assets on the Ethereum blockchain or other blockchain - based network. Neither BE nor any other person or entity will be able to retrieve or protect your Digital Assets. If your private key(s) are lost, you will not be able to transfer your Digital Assets to any other blockchain address or wallet. If this occurs, you will not be able to realize any value or utility from the Digital Assets that you may hold.

10.2 The Services and your Digital Assets could be impacted by one or more regulatory inquiries or regulatory actions, which could impede or limit BE's ability to continue to make available its proprietary software and, thus, could impede or limit your ability to access or use the Services.

10.3 You acknowledge and understand that cryptography is a progressing field with advances in code-cracking or other technical advancements, such as the development of quantum computers, which may present risks to Digital Assets and the Services and could result in the theft or loss of your Digital Assets. To the extent possible, we intend to update BE-developed or owned software related to the Services to incorporate additional security measures necessary to address risks presented by technological advancements, but that intention does not guarantee or otherwise ensure full security of the Services.

10.4 You understand that the Ethereum blockchain and other blockchain-based networks are still under development. This creates technological and security risks when using the Services, in addition to uncertainties related to Digital Assets and transactions involving them. You acknowledge that the cost of transacting on the Ethereum blockchain and other blockchain-based networks may vary and could increase at any time, impacting any activities taking place on the Ethereum blockchain or other blockchain-based networks. This may result in price fluctuations or increased costs when using the Services.

10.5 You acknowledge that the Services have flaws and that you are solely responsible for evaluating any code provided by the Services or the Site. This warning and other warnings BE provides in these Terms in no way imply or represent an ongoing duty to alert you to all the potential risks of using the Services or accessing the Site.

10.6 Although we aim to provide accurate and timely information on the Site and during your use of the Services, the Site and other information available when using the Services may not always be entirely accurate, complete, or up - to - date. It may also contain technical inaccuracies or typographical errors. To continue providing you with as comprehensive and accurate information as possible, information may be changed or updated from time to time without notice, including, but not limited to, information regarding our policies. Accordingly, you should verify all information before relying on it, and all decisions based on information on the Site or as part of the Services are your sole responsibility. No claim is made regarding the accuracy, completeness, or suitability for any particular purpose of any pricing information distributed via the Site or otherwise when using the Services. Prices and pricing information may be higher or lower than those available on platforms offering similar services.

10.7 Any use or interaction with the Services requires a thorough understanding of applied cryptography and computer science to recognize the inherent risks, including those listed above. You represent and warrant that you have the relevant knowledge and skills. Any reference to a type of Digital Asset on the Site or otherwise during the use of the Services does not indicate our approval or disapproval of the technology on which the Digital Asset is based, and should not be used as a substitute for your understanding of the risks specific to each type of Digital Asset.

10.8 Using the Services, especially for Digital Assets transactions, may involve financial risk. Digital Assets and decentralized protocols are highly experimental, risky, and volatile. Transactions made in connection with the Services are irreversible and final, and there are no refunds. You acknowledge and agree that you will access and use the Site and the Services at your own risk. The risk of loss when transacting in Digital Assets using BE Services can be significant. Therefore, you should carefully consider whether such transactions are suitable for you in light of your circumstances and financial resources. By using the Services, you represent and warrant that you have been, are, and will be solely responsible for independently appraising and investigating the risks of a given BE's Tools transaction. You represent that you have sufficient knowledge, market savvy, professional advice, and experience to evaluate the merits and risks of any transaction conducted in connection with the Services. You accept all consequences of using the Services, including the risk of losing access to your Digital Assets indefinitely. All transaction decisions are made solely by you. Notwithstanding anything in these Terms, we accept no responsibility whatsoever for, and will in no circumstances be liable to you in connection with, your use of the Services.

10.9 We must comply with Applicable Law, which may require us, upon request by government agencies, to take certain actions or provide information. This may not be in your best interests and may occur without notice to you.

10.10 You understand that the Service is still under development, which poses technological, transaction-related, and other risks when using the Services. These risks include, but are not limited to, delays in trades, withdrawals, and deposits due to the servers of BE or any other operator of the Services being offline; inaccurate display of information on the Site in case of server errors; or transactions using the Services being reversed in case of server errors. You acknowledge that these risks may significantly impact your transactions using the Services, which may, among other things, result in failure to execute transactions at your desired price or at all.

10.11 You hereby assume the risks set forth in this Section 10 and agree that BE will have no responsibility or liability for them. You hereby irrevocably waive, release, and discharge all claims, whether known or unknown to you, against BE, its affiliates, and their respective shareholders, members, directors, officers, employees, agents, representatives, suppliers, and contractors related to any of the risks set forth in this Section 10.

11. Indemnification

You will defend, indemnify, and hold harmless BE, its affiliates, and the respective stockholders, members, directors, officers, managers, employees, attorneys, agents, representatives, suppliers, and contractors of BE and its affiliates (collectively, "**Indemnified Parties**") from any claim, demand, lawsuit, action, proceeding, investigation, liability, damage, loss, cost, or expense, including, without limitation, reasonable attorneys' fees, arising out of or relating to:

- (a) your use of, or conduct in connection with, the Site or the Services (including, without limitation, the Service);
- (b) Digital Assets associated with your Ethereum or other applicable blockchain address;
- (c) any feedback or user content you provide to BE, if any, concerning the Site or the Services;
- (d) your violation of these Terms; or
- (e) your infringement or misappropriation of the rights of any other person or entity.

If you are obligated to indemnify any Indemnified Party, BE (or, at its discretion, the applicable Indemnified Party) will have the right, in its sole discretion, to control any action or proceeding and to determine whether BE wishes to settle, and if so, on what terms. You agree to cooperate with BE in the defense.

12. Disclosures; Disclaimers

BE is a developer and owner of software. BE does not operate a Digital Asset or derivatives exchange platform or offer clearing services and, therefore, has no oversight, involvement, or control concerning your transactions using the Services and/or tools. Any secondary transactions between users of the Services are executed peer-to-peer directly between the users' Ethereum or other applicable blockchain addresses through a smart contract. You are responsible for complying

with all Applicable Laws that govern your use of the Services and/or tools. BE does not own or control the underlying software protocols that are used in connection with Ethereum or other applicable blockchains. In general, decentralized protocols are open source and anyone can use, copy, modify, and distribute them. BE is not responsible for the operation of decentralized protocols, and we make no guarantee of their functionality, security, or availability.

To the maximum extent permitted under applicable law, the Site, the Services, (and any of their content or functionality provided by or on behalf of us are provided on an “as is” and “as available” basis.

We expressly disclaim, and you hereby waive, any representations, conditions, or warranties of any kind, whether express or implied, legal, statutory, or otherwise, or arising from statute, otherwise in law, course of dealing, or usage of trade. This includes, without limitation, the implied or legal warranties and conditions of merchantability, merchantable quality, quality, or fitness for a particular purpose, title, security, availability, reliability, accuracy, quiet enjoyment, and non-infringement of third-parties' rights.

Without limiting the foregoing, we do not represent or warrant that the Site or the Services ((including any data relating thereto) will be uninterrupted, available at any particular time, or error-free. Further, we do not warrant that errors in the Site or the Services are correctable or will be correctable.

You acknowledge that your data on the Site may become irretrievably lost, corrupted, or temporarily unavailable due to various causes. You also agree that, to the maximum extent permitted under Applicable Law, we will not be liable for any loss or damage caused by denial-of-service attacks, software failures, viruses, or other technologically harmful materials (including those that may infect your computer equipment), protocol changes by third-party providers, internet outages, Force Majeure events or other disasters, scheduled or unscheduled maintenance, or other causes either within or outside our control.

The disclaimer of implied warranties contained herein may not apply if and to the extent such warranties cannot be excluded or limited under the Applicable Law of the jurisdiction in which you reside.

13. Limitation of Liability

In no event shall BE's aggregate liability (together with its affiliates, including its and its affiliates' respective stockholders, members, directors, managers, officers, employees, attorneys, agents, representatives, suppliers, or contractors) arising out of or in connection with the Site and the Services (and any of their content and functionality), any performance or non-performance of the Services, your Digital Assets, or any tool, service, or other item made available by or on behalf of BE, whether under contract, tort, negligence, civil liability, statute, strict liability, or other theory of liability, exceed the amount of fees paid by you to BE under these terms.

14. Dispute Resolution & Arbitration

14.1 please read the following section carefully because it requires you to arbitrate certain disputes and claims with be and limits how you can seek relief from be.

This Section 14 (this “**Arbitration Provision**”) applies to and governs any dispute, controversy, or claim between you and us that arises out of or relates to, directly or indirectly:

(a) these Terms, including the formation, existence, breach, termination, enforcement, interpretation, validity, and enforceability thereof;

(b) access to or use of the Site or the Services;

(c) any transactions through, by, or using the Site or the Services; or

(d) any other aspect of your relationship or transactions with us, directly or indirectly, as a visitor to or user of the Site or the Services (each, a “**Claim**,” and, collectively, “**Claims**”).

This Arbitration Provision applies, without limitation, to all Claims that arose or were asserted before or after your consent to these Terms.

You and BE agree that any dispute arising out of or related to these Terms, the Site or the Services is personal to you and BE and that any dispute will be resolved solely through individual action, and will not be brought as a class arbitration, class action, or any other type of representative proceeding.

14.2 Dispute Resolution Process. For any Claim, you agree that you will first contact us at [email address] and attempt to resolve the Claim with us informally. In the unlikely event that we have not been able to resolve a Claim after ninety (90) days, we each agree to resolve such Claim exclusively through binding arbitration by Hong Kong International Arbitration Center (“HKIAC”) before a single arbitrator (the “**Arbitrator**”), under the HKIAC Arbitration Rules (the “**Rules**”), except as provided herein. In the event of any conflict between the Rules and this Arbitration Provision, this Arbitration Provision will control.

The seat of the arbitration shall be Hong Kong, and the language of the arbitration shall be English. Judgment upon the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof. Each party will bear their own attorneys’ fees and costs in any action subject to this Arbitration Provision; and the rule that the prevailing or substantially prevailing party be reimbursed attorneys’ fees and costs will not apply with respect to the arbitration or otherwise.

Each party irrevocably and unconditionally waives any objection that it may now or hereafter have to the laying of venue of any action or proceeding arising out of or relating to these Terms in the courts referred to in this Section 14.2.

14.3 Class Action Waiver. With respect to all persons and entities, regardless of whether they have obtained or used the site for personal, commercial, or other purposes, all disputes, controversies, or claims must be brought in the parties’ individual capacity, and not as a plaintiff or

class member in any purported class action, collective action, or other representative proceeding. This waiver applies to class arbitration, and unless we agree otherwise, the arbitrator may not consolidate more than one person's claims. You agree that, by entering into the agreement, you and we are each waiving the right to participate in a class action, collective action, or other representative proceeding of any kind.

14.4 Equitable Relief. Nothing in this arbitration provision shall be deemed to: Prevent us from seeking injunctive or other equitable relief from the courts as necessary to prevent the actual or threatened infringement, misappropriation, or violation of our data security, confidential information, or intellectual property rights; or prevent you from asserting claims in a small claims court, provided that your claims qualify and so long as the matter remains in such court and proceeds on only an individual (non-class, non-collective, and non-representative) basis.

14.5 Severability. If any portion of this Section 14 is found to be unenforceable or unlawful for any reason:

- (a) the unenforceable or unlawful provision shall be severed from these Terms;
- (b) severance of the unenforceable or unlawful provision shall have no impact whatsoever on the remainder of this Section 14 or the parties' ability to compel arbitration of any remaining claims on an individual basis under this Section 14; and
- (c) to the extent that any claims must therefore proceed on a class, collective, consolidated, or representative basis, such claims must be litigated in a civil court of competent jurisdiction and not in arbitration, and the parties agree that litigation of those claims shall be stayed pending the outcome of any individual claims in arbitration.

Further, if any part of this Section 14 is found to prohibit an individual claim seeking public injunctive relief, then that provision will have no effect to the extent such relief is allowed to be sought outside of arbitration, and the remainder of this Section 14 will be enforceable.

15. General Information

15.1 Privacy Policy. Please refer to our [Privacy Policy](#) for information about how we collect, use, share, and otherwise process information about you.

15.2 Consent to Electronic Delivery. You consent to receive all communications, agreements, documents, receipts, notices, and disclosures electronically (collectively, our "**Communications**") that we provide in connection with these Terms or any Services. You agree that we may provide our Communications to you by posting them on the Site or by emailing them to you at the email address you provide in connection with using the Services, if any. You should maintain copies of our Communications by printing a paper copy or saving an electronic copy. You may also contact us with questions, complaints, or claims concerning the Services at [\[email address\]](#).

15.3 Remedies. Any right or remedy of BE set forth in these Terms is in addition to, and not in lieu of, any other right or remedy whether described in these Terms, under Applicable Law, at law, or in equity. The failure or delay of BE in exercising any right, power, or privilege under these Terms shall not operate as a waiver thereof.

15.4 Severability. The invalidity or unenforceability of any of these Terms shall not affect the validity or enforceability of any other of these Terms, all of which shall remain in full force and effect.

15.5 Force Majeure. We will have no responsibility or liability for any failure or delay in performance of the Site or any of the Services, or any loss or damage that you may incur, due to any circumstance or event beyond our control, including without limitation any flood, extraordinary weather conditions, earthquake, or other act of God, fire, war, insurrection, riot, labor dispute, accident, action of government, communications, power failure, or equipment or software malfunction.

15.6 Assignment. You may not assign or transfer any right to use the Site or the Services, or any of your rights or obligations under these Terms, without our express prior written consent, including by operation of law or in connection with any change of control. We may assign or transfer any or all of our rights or obligations under these Terms, in whole or in part, without notice or obtaining your consent or approval.

15.7 Governing Law. The interpretation and enforcement of these Terms, and any dispute related to these Terms, the Site, or the Services, shall be governed by, construed, and enforced under the laws of Mauritius, without regard to its conflicts-of-laws rules.

15.8 Headings. Headings of sections are for convenience only and shall not be used to limit or construe such sections.

15.9 Entire Agreement. These Terms contain the entire agreement between you and BE, and supersede all prior and contemporaneous understandings between you and BE regarding the Site and the Services. For clarity, these Terms shall apply regardless of any separate agreements that you may have entered into, and any such other agreements shall remain in full force and effect.

15.10 Interpretation. In the event of any conflict between these Terms and any other agreement you may have with us, these Terms will prevail unless the other agreement specifically identifies these Terms and declares that the other agreement supersedes these Terms.

15.11 No Third Parties. You agree that, except as otherwise expressly provided in these Terms, there shall be no third-party beneficiaries to these Terms other than the Indemnified Parties.